

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

BAYER INTELLECTUAL PROPERTY
GMBH, BAYER AG, and JANSSEN
PHARMACEUTICALS, INC.,

Plaintiffs,

v.

ROSEMONT PHARMACEUTICALS
LIMITED and ROSEMONT
PHARMACEUTICALS HOLDINGS, INC.,

Defendants.

C.A. No. _____

COMPLAINT

Plaintiffs Bayer Intellectual Property GmbH (“BIP”), Bayer AG (Bayer AG and BIP are collectively referred to herein as “Bayer”), and Janssen Pharmaceuticals, Inc. (“Janssen”) (Bayer and Janssen are collectively referred to herein as “Plaintiffs”), by their attorneys, for their Complaint, hereby allege as follows:

NATURE OF THE ACTION

1. This is an action for patent infringement under the patent laws of the United States, Title 35, United States Code, that arises out of the submission by Rosemont Pharmaceuticals Holdings, Inc. of a New Drug Application (“NDA”) under Section 505(b)(2) of the Federal Food, Drug, and Cosmetic Act to the U.S. Food and Drug Administration (“FDA”) seeking approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of generic versions of Plaintiffs’ 10 mg, 15 mg, and 20 mg XARELTO® products prior to the expiration of U.S. Patent No. 9,539,218 (“the ’218 patent”).

THE PARTIES

Plaintiffs

2. Plaintiff Bayer Intellectual Property GmbH is a corporation organized and existing under the laws of the Federal Republic of Germany, with a place of business at Alfred-Nobel-Strasse 50, 40789 Monheim am Rhein, Germany.

3. Plaintiff Bayer AG is a corporation organized and existing under the laws of the Federal Republic of Germany, with a place of business at Kaiser-Wilhelm-Allee 1, 51368 Leverkusen, Germany.

4. Plaintiff Janssen Pharmaceuticals, Inc. is a corporation organized and existing under the laws of the Commonwealth of Pennsylvania, with a place of business at 1125 Trenton-Harbourton Road, Titusville, New Jersey.

Rosemont

5. Upon information and belief, Rosemont Pharmaceuticals Limited is a company organized and existing under the laws of the United Kingdom, having a principal place of business at Rosemont House, Yorkdale Industrial Park, Braithwaite Street, Leeds, Great Britain, LS11 9XE.

6. Upon information and belief, Rosemont Pharmaceuticals Holdings, Inc. is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 6035 Ponders Court, Suite G., Greenville, South Carolina 29615.

7. Upon information and belief, Rosemont Pharmaceuticals Holdings, Inc. is a wholly owned subsidiary of Rosemont Pharmaceuticals Limited.

8. Upon information and belief, Rosemont Pharmaceuticals Limited and Rosemont Pharmaceuticals Holdings, Inc. are in the business of, among other things,

manufacturing, marketing, distributing, offering for sale, and selling generic drug products. As a part of this business, upon information and belief, Rosemont Pharmaceuticals Holdings, Inc., acting in concert with Rosemont Pharmaceuticals Limited, files NDAs with the FDA seeking approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of generic versions of drug products that are covered by United States patents. Upon information and belief, as part of these NDAs, Rosemont Pharmaceuticals Holdings, Inc., acting in concert with Rosemont Pharmaceuticals Limited, files certifications of the type described in Section 505(j)(2)(A)(vii)(IV) of the Federal Food, Drug, and Cosmetic Act (“Paragraph IV Certifications”), as well as Section 505(b)(2) of the Act, to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of generic drug products prior to the expiration of United States patents that cover such products.

9. Upon information and belief, Rosemont Pharmaceuticals Holdings, Inc., acting in concert with Rosemont Pharmaceuticals Limited, prepared and submitted NDA No. 221033 for Rosemont’s rivaroxaban products (“Rosemont’s NDA Products”).

10. Upon information and belief, Rosemont Pharmaceuticals Limited and Rosemont Pharmaceuticals Holdings, Inc. are agents of each other, and/or operate in concert as integrated parts of the same business group, and enter into agreements with each other that are nearer than arm’s length, including with respect to the development, regulatory approval, marketing, sale, offer for sale, and distribution of generic pharmaceutical products throughout the United States, including into Delaware, and including with respect to Rosemont’s NDA Products at issue.

11. Upon information and belief, following any FDA approval of NDA No. 221033, Rosemont Pharmaceuticals Holdings, Inc., acting in concert with Rosemont

Pharmaceuticals Limited, will market, distribute, offer for sale, and sell Rosemont's NDA Products throughout the United States, including within Delaware. These entities are hereinafter collectively referred to as "Rosemont."

12. Upon information and belief, following any FDA approval of NDA No. 221033, Rosemont knows and intends that Rosemont's NDA Products will be marketed, used, distributed, offered for sale, and sold in the United States, including in Delaware.

JURISDICTION

13. Plaintiffs incorporate each of the preceding paragraphs as if each fully set forth herein.

14. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.

15. This Court has personal jurisdiction over Rosemont Pharmaceuticals Holdings, Inc. because, among other things, upon information and belief, Rosemont Pharmaceuticals Holdings, Inc. is a Delaware corporation with a registered agent in Delaware (Capitol Services, Inc., 108 Lakeland Avenue, Dover, Delaware 19901).

16. Upon information and belief, Rosemont Pharmaceuticals Holdings, Inc. is responsible for marketing, distributing, offering for sale, and/or selling generic copies of branded pharmaceutical products in the U.S. market, including in Delaware, and relies on contributions from Rosemont Pharmaceuticals Limited.

17. Upon information and belief, Rosemont Pharmaceuticals Holdings, Inc., acting as the agent of Rosemont Pharmaceuticals Limited, markets, distributes, offers for sale, and/or sells in Delaware and elsewhere in the United States generic pharmaceutical products that

are manufactured by Rosemont Pharmaceuticals Limited or for which Rosemont Pharmaceuticals Holdings, Inc. is the named applicant on approved NDAs.

18. This Court has personal jurisdiction over Rosemont Pharmaceuticals Limited because, among other things, upon information and belief: (1) Rosemont Pharmaceuticals Limited has acted in concert with Rosemont Pharmaceuticals Holdings, Inc. to file an NDA for the purpose of seeking approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Rosemont's NDA Products in the United States, including in Delaware; and (2) Rosemont Pharmaceuticals Limited, acting in concert with Rosemont Pharmaceuticals Holdings, Inc., will market, distribute, offer for sale, and/or sell Rosemont's NDA Products in the United States, including in Delaware, upon approval of NDA No. 221033, and will derive substantial revenue from the use or consumption of Rosemont's NDA Products in the State of Delaware. Upon information and belief, if NDA No. 221033 is approved, the generic Rosemont products charged with infringing the '218 patent would, among other things, be marketed, distributed, offered for sale, and/or sold in Delaware, prescribed by physicians practicing in Delaware, and dispensed by pharmacies located within Delaware, and/or used by patients in Delaware, all of which would have a substantial effect on Delaware.

19. Alternatively, if Rosemont Pharmaceuticals Limited's connections with Delaware are found to be insufficient to confer personal jurisdiction, then, upon information and belief, Rosemont Pharmaceuticals Limited is not subject to jurisdiction in any state's courts of general jurisdiction, and exercising jurisdiction over Rosemont Pharmaceuticals Limited in Delaware is consistent with the United States Constitution and laws. *See* Fed. R. Civ. P. 4(k)(2).

VENUE

20. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 and 1400(b).

21. Venue is proper in this district for Rosemont Pharmaceuticals Holdings, Inc. pursuant to 28 U.S.C. §§ 1391 and 1400(b) because, *inter alia*, Rosemont Pharmaceuticals Holdings, Inc. is a corporation organized and existing under the laws of the State of Delaware and is subject to personal jurisdiction in this judicial district.

22. Venue is proper in this district for Rosemont Pharmaceuticals Limited because, *inter alia*, Rosemont Pharmaceuticals Limited is not resident in the United States and is subject to personal jurisdiction in this judicial district.

FACTUAL BACKGROUND

23. XARELTO® (active ingredient rivaroxaban) is a factor Xa inhibitor indicated (i) to reduce the risk of stroke and systemic embolism in adult patients with nonvalvular atrial fibrillation; (ii) for the treatment of deep vein thrombosis (DVT); (iii) for the treatment of pulmonary embolism (PE); (iv) for the reduction in the risk of recurrence of DVT and/or PE in adult patients at continued risk for recurrent DVT and/or PE after completion of initial treatment lasting at least 6 months; (v) for the prophylaxis of DVT, which may lead to PE in adult patients undergoing knee or hip replacement surgery; (vi) for the prophylaxis of venous thromboembolism (VTE) and VTE related death during hospitalization and post hospital discharge in adult patients admitted for an acute medical illness who are at risk for thromboembolic complications due to moderate or severe restricted mobility and other risk factors for VTE and not at high risk of bleeding; (vii) in combination with aspirin, to reduce the risk of major cardiovascular events (cardiovascular death, myocardial infarction, and stroke) in adult patients with coronary artery disease (CAD); (viii) in combination with aspirin, to reduce the risk of major thrombotic vascular events (myocardial infarction, ischemic stroke, acute limb ischemia, and major amputation of a vascular etiology) in adult patients with peripheral artery disease (PAD), including patients who

have recently undergone a lower extremity revascularization procedure due to symptomatic PAD; (ix) for the treatment of VTE and the reduction in the risk of recurrent VTE in pediatric patients from birth to less than 18 years after at least 5 days of initial parenteral anticoagulant treatment; (x) for thromboprophylaxis in pediatric patients aged 2 years and older with congenital heart disease who have undergone the Fontan procedure. XARELTO® is available in 2.5 mg, 10 mg, 15 mg, and 20 mg dosage strengths.

24. Janssen is the holder of New Drug Application No. 022406 for XARELTO®, which has been approved by the FDA.

The '218 Patent

25. U.S. Patent No. 9,539,218, entitled “Prevention and Treatment of Thromboembolic Disorders,” was duly and legally issued on January 10, 2017. The '218 patent is attached as Exhibit A.

26. As set forth in greater detail in the '218 patent, the claims of the '218 patent, incorporated by reference herein, cover certain methods involving rivaroxaban. For example, claim 1 recites, “A method of treating a thromboembolic disorder comprising administering a direct factor Xa inhibitor that is 5-Chloro-N-({(5S)-2-oxo-3-[4-(3-oxo-4-morpholinyl)phenyl]-1,3-oxazolidin-5-yl}methyl)-2-thiophenecarboxamide no more than once daily for at least five consecutive days in a rapid-release tablet to a patient in need thereof, wherein the thromboembolic disorder is selected from the group consisting of pulmonary embolisms, deep vein thromboses, and stroke.”

27. BIP is the assignee of the '218 patent.

28. Bayer AG is an exclusive licensee under the '218 patent.

29. Janssen is an exclusive sublicensee under the '218 patent.

30. Pursuant to 21 U.S.C. § 355, the '218 patent is listed in the *Approved Drug Products with Therapeutic Equivalence Evaluations* ("the Orange Book") in connection with XARELTO® in 10 mg, 15 mg, and 20 mg dosage strengths.

Infringement by Rosemont

31. By letter dated March 9, 2026, (the "Rosemont Notice Letter"), Rosemont notified BIP and Janssen, among others, that Rosemont had submitted to the FDA NDA No. 221033 for Rosemont's NDA Products. These products are generic versions of XARELTO®.

32. In the Rosemont Notice Letter, Rosemont stated that Rosemont's NDA Products contain rivaroxaban.

33. Upon information and belief, the use of Rosemont's NDA Products in accordance with and as directed by Rosemont's proposed labeling for those products will infringe at least claim 1 of the '218 patent, either literally or under the doctrine of equivalents.

34. Upon information and belief, the proposed labeling for Rosemont's NDA Products directs the use of Rosemont's NDA Products for one or more of the following indications: (i) to reduce the risk of stroke and systemic embolism in adult patients with nonvalvular atrial fibrillation; (ii) for the treatment of deep vein thrombosis (DVT); (iii) for the treatment of pulmonary embolism (PE); (iv) for the reduction in the risk of recurrence of DVT and/or PE in adult patients at continued risk for recurrent DVT and/or PE after completion of initial treatment lasting at least 6 months; (v) for the prophylaxis of DVT, which may lead to PE in adult patients undergoing knee or hip replacement surgery; (vi) for the prophylaxis of venous thromboembolism (VTE) and VTE related death during hospitalization and post hospital discharge in adult patients admitted for an acute medical illness who are at risk for thromboembolic complications due to moderate or severe restricted mobility and other risk factors for VTE and not at high risk of

bleeding. Upon information and belief, the proposed labeling for Rosemont's NDA Products directs the use of Rosemont's NDA Products in a manner that satisfies the "no more than once daily for at least five consecutive days" requirement of claim 1 of the '218 patent.

35. Upon information and belief, the manufacture, use (including in accordance with and as directed by Rosemont's proposed labeling for Rosemont's NDA Products), offer for sale, sale, marketing, distribution, and/or importation of Rosemont's NDA Products will infringe, literally and/or under the doctrine of equivalents, at least claim 1 of the '218 patent.

36. In the Rosemont Notice Letter, Rosemont indicated that, in connection with its NDA No. 221033, Rosemont had filed a Paragraph IV Certification with respect to the '218 patent.

37. In the Rosemont Notice Letter, Rosemont also indicated that the FDA had received an NDA from Rosemont seeking approval for generic versions of Plaintiffs' XARELTO® products.

38. Upon information and belief, the purpose of NDA No. 221033 was to obtain approval under the Food Drug and Cosmetic Act to engage in the commercial manufacture, use, offer for sale, and/or sale of Rosemont's NDA Products with their proposed labeling, *i.e.*, prior to the expiration of the '218 patent.

39. Upon information and belief, Rosemont intends to engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Rosemont's NDA Products with their proposed labeling immediately and imminently upon approval of NDA No. 221033, *i.e.*, prior to the expiration of the '218 patent.

40. Rosemont has knowledge of the claims of the '218 patent. Notwithstanding this knowledge, Rosemont has continued to assert its intent to engage in the manufacture, use,

offer for sale, sale, marketing, distribution, and/or importation of Rosemont's NDA Products with their proposed labeling immediately and imminently upon approval of NDA No. 221033. Upon information and belief, by such activities, Rosemont specifically intends infringement of the '218 patent.

41. Upon information and belief, Rosemont plans and intends to, and will, actively induce infringement of the '218 patent when its NDA is approved, and plans and intends to, and will, do so immediately and imminently upon approval.

42. Upon information and belief, Rosemont knows that Rosemont's NDA Products are especially made or adapted for use in infringing the '218 patent, and that Rosemont's NDA Products are not suitable for substantial noninfringing use. Rosemont's NDA Products are a material part of the claimed invention. Upon information and belief, Rosemont plans and intends to, and will, contribute to infringement of the '218 patent immediately and imminently upon approval of NDA No. 221033.

43. Upon information and belief, the foregoing actions by Rosemont constitute and/or will constitute infringement of the '218 patent, active inducement of infringement of the '218 patent, and/or contribution to the infringement by others of the '218 patent.

44. In an exchange of correspondence, counsel for Bayer and counsel for Rosemont discussed the terms of Rosemont's Offer for Confidential Access. The parties could not agree on the scope of materials to be produced, including, for example, samples of Rosemont's NDA Products, or the conditions under which those materials would be produced. Without all of the materials requested by Bayer, including samples of Rosemont's NDA Products, which are not publicly available and which Rosemont refused to produce, Plaintiffs were unable to obtain the

information Plaintiffs' sought concerning Rosemont's NDA Products for purposes of analyzing infringement of the '218 patent within the 45-day period for filing suit.

45. An actual case or controversy exists between Plaintiffs and Rosemont with respect to infringement of the '218 patent.

46. This action is being commenced before the expiration of forty-five days from the date BIP and Janssen received the Rosemont Notice Letter.

COUNT I
(Infringement of the '218 Patent)

47. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

48. Rosemont's submission of NDA No. 221033 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Rosemont's NDA Products was an act of infringement of the '218 patent under 35 U.S.C. § 271(e)(2).

49. Upon information and belief, Rosemont has made, and will continue to make, substantial preparation in the United States to manufacture, use, sell, offer to sell, and/or import Rosemont's NDA Products with their proposed labeling prior to the expiration of the '218 patent.

50. Rosemont intends to engage in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Rosemont's NDA Products with their proposed labeling immediately and imminently upon approval of NDA No. 221033, *i.e.*, prior to the expiration of the '218 patent.

51. Upon information and belief, the foregoing actions by Rosemont constitute and/or will constitute infringement of the '218 patent, active inducement of infringement of the '218 patent, and/or contribution to the infringement by others of the '218 patent.

52. Unless Rosemont is enjoined from infringing the '218 patent, actively inducing infringement of the '218 patent, and contributing to the infringement by others of the '218 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT II
(Declaratory Judgment of Infringement of the '218 Patent)

53. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

54. The Court may declare the rights and legal relations of the parties pursuant to 28 U.S.C. §§ 2201 and 2202 because there is a case of actual controversy between Plaintiffs on the one hand and Rosemont on the other regarding Rosemont's liability for infringement, active inducement of, and contribution to infringement of the '218 patent.

55. An actual case or controversy exists between Plaintiffs and Rosemont with respect to Rosemont's liability for infringement of the '218 patent.

56. The Court should declare that the commercial manufacture, use, sale, offer for sale or importation of Rosemont's NDA Products will infringe, induce the infringement of, and contribute to the infringement of the '218 patent.

* * *

WHEREFORE, Plaintiffs request the following relief:

- (a) A judgment that Rosemont has infringed the '218 patent;
- (b) A judgment ordering that the effective date of any FDA approval for Rosemont to make, use, offer for sale, sell, market, distribute, or import Rosemont's NDA Products, or any product or compound the use of which infringes the '218 patent, be no earlier than the expiration date of the '218 patent, inclusive of any extension(s) and additional period(s) of exclusivity;

(c) A preliminary and permanent injunction enjoining Rosemont, and all persons acting in concert with Rosemont, from making, using, selling, offering for sale, marketing, distributing, or importing Rosemont's NDA Products, or any product or compound the use of which infringes the '218 patent, or the inducement of or the contribution to any of the foregoing, prior to the expiration date of the '218 patent, inclusive of any extension(s) and additional period(s) of exclusivity;

(d) A judgment declaring that the commercial manufacture, use, sale, offer for sale or importation of Rosemont's NDA Products prior to the expiration of the '218 patent will infringe and induce the infringement of the '218 patent;

(e) A declaration that this is an exceptional case and an award of attorneys' fees for Plaintiffs pursuant to 35 U.S.C. § 285;

(f) An award of Plaintiffs' costs and expenses in this action; and

(g) Such further and other relief as this Court may deem just and proper.

MORRIS, NICHOLS, ARSHT & TUNNELL LLP

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